

Strategic Legal Pathways for Dismantling Transnational Coercive Control, Perjury, and Defamation within the Irish Jurisdictional Framework

1. Executive Synthesis and Jurisdictional Context

The intersection of transnational family law, criminal justice, civil torts, and administrative law presents a profoundly complex matrix in modern Irish jurisprudence. This is particularly evident when legal and administrative mechanisms are actively weaponized to perpetuate intra-familial abuse, requiring a highly synchronized, multi-jurisdictional legal response. The present comprehensive analysis evaluates a documented, systemic breakdown in family dynamics characterized by severe coercive control, the strategic weaponization of the judicial system, retaliatory defamation, and administrative malfeasance within the Republic of Ireland's court infrastructure.¹ The catalyst for this multidimensional legal conflict originates from protected statutory disclosures made by a mandated professional to the Child and Family Agency (Tusla) and educational authorities regarding the psychological subjugation of minor siblings and the exploitation of their medical data.¹

In direct, punitive retaliation to these mandated disclosures, the perpetrator initiated a sophisticated campaign of legal abuse and defamation that crossed jurisdictional lines into Northern Ireland, precipitating a physical threat to the whistleblower's life.¹ Furthermore, the perpetrator manipulated the Irish District Court system to secure protective orders *in absentia* through the deployment of fabricated narratives, while simultaneously engaging in the extreme psychological manipulation of vulnerable family members to ensure their silence and compliance.¹

This exhaustive report systematically deconstructs the legal mechanisms available to counteract this multifaceted abuse. It delineates the urgent procedural steps required to initiate civil defamation proceedings before the absolute expiry of the statute of limitations in July 2026.¹ It identifies specialized legal representation in Galway and Dublin to navigate both civil and criminal streams.³ Crucially, the analysis constructs a strategic roadmap to manage and protect vulnerable, manipulated witnesses—specifically the stepmother and sisters—ensuring they are insulated from further psychological trauma and legally prevented from committing perjury under duress.⁶ Furthermore, it compiles the evidentiary requirements to prosecute transnational coercive control and statutory perjury, outlines the precise procedural steps to overturn the February 2026 *in absentia* Safety Order, and establishes the robust statutory rights available to secure disability accommodations, allowing the victim to bypass physically triggering environments like local Garda stations by engaging directly with

national bureaus.¹

2. Strategic Retention of Legal Counsel in Galway and Dublin

Navigating a multifaceted case involving High Court civil defamation, criminal perjury prosecution, and complex District and Circuit Court family law appeals requires highly specialized, bifurcated legal representation. The retention of counsel must reflect the dual nature of the litigation: pursuing aggressive civil tort claims while simultaneously dismantling fraudulent domestic violence orders and interfacing with the State's prosecutorial apparatus.

2.1 Civil Defamation and Tort Specialists

Defamation litigation in the Republic of Ireland is an exceptionally specialized field, requiring practitioners adept at navigating the newly commenced Defamation (Amendment) Act 2026.¹¹ The required legal representation must possess the capacity to initiate High Court Plenary Summonses urgently while managing complex corporate and individual reputational damage.

Firm Designation	Jurisdictional Presence	Practice Area Expertise and Strategic Fit	Contact Mechanisms
J.O.S Solicitors	Dublin (Fitzwilliam Square) & Galway (Headford Road)	Specialized explicitly in defamation law, employment law, corporate law, and public affairs. They possess verified experience representing both individual professionals and commercial/charitable entities in High Court defamation actions, making them uniquely suited to handle the joint whistleblower-charity claim.	01 482 6930 (Dublin); 091 511 460 (Galway); info@jossolicitors.ie ³
Lavelle Partners	Dublin & Galway	A prominent firm offering comprehensive litigation and dispute	+353 1 644 5800; law@lavellepartners.ie ⁴

		resolution services, including expert legal advice on complex defamation matters and High Court injunctions.	
Gibson & Associates	Nationwide (Facilitating Dublin/Galway)	Focused on the protection of reputation, libel, and slander. They possess the capacity to act swiftly to secure emergency High Court injunctions to halt the further publication of defamatory material and pursue substantial compensation.	+353 (0)1 264 5555 ¹⁶
O'Donnell Waters LLP	Galway & Dublin	An established general practice law firm operating for over 25 years, offering comprehensive litigation services with physical offices in both required jurisdictions.	Specialized litigation services ¹⁷

2.2 Criminal Defense, Family Law, and Human Rights Specialists

To handle the complexities of overturning fraudulent domestic violence orders, prosecuting coercive control, and invoking statutory protections for vulnerable witnesses, the retention of a firm with profound roots in criminal defense, family law, and human rights is absolutely essential.

Firm Designation	Jurisdictional Presence	Practice Area Expertise and Strategic Fit	Contact Mechanisms
KOD Lyons	Dublin (Usher's Quay)	Recognized as one of Ireland's leading experts in criminal defense, domestic violence, child protection, and public	+353 1 679 0780; After Hours: +353 86 085 9800 ⁵

		interest law. Partners such as Matthew de Courcy and solicitor Marion Campbell specialize in complex family breakdowns, safety/barring orders, and interfacing with the Director of Public Prosecutions (DPP) and the Garda Ombudsman (GSOC). Their expertise in disability and carers law is vital for implementing the required accommodations.	
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The optimal strategic recommendation is to deploy a synchronized, dual-firm approach: retaining J.O.S Solicitors to aggressively advance the High Court defamation writ and civil torts against the State, while engaging KOD Lyons to manage the District and Circuit Court family law appeals and to formally submit the criminal complaints of perjury and coercive control directly to the specialized national bureaus.

3. Civil Defamation: Procedural Urgency and the 2026 Legislative Paradigm Shift

The perpetrator engaged in a campaign of extreme defamation, maliciously fabricating allegations that the whistleblower committed severe crimes against children within educational settings.¹ This horrific fabrication was explicitly designed to annihilate the whistleblower's professional livelihood and the reputation of the educational charities they operated.¹ The dissemination of these claims crossed jurisdictional lines into Belfast, Northern Ireland, inciting violent vigilantism and precipitating a formal threat to the whistleblower's life.¹ While these actions constitute criminal offenses under the UK Malicious Communications Act 1988, a civil claim for defamation in the Republic of Ireland provides the most potent mechanism for financial accountability and the formal, public vindication of reputation.¹

3.1 The Statute of Limitations and Absolute Procedural Urgency

The initiation of civil defamation proceedings is governed by exceptionally rigid statutory limitations that require immediate, aggressive action. Under Section 38(1)(a) of the Defamation Act 2009, which amended Section 11(2)(c) of the Statute of Limitations Act 1957, the standard limitation period for initiating a defamation action is strictly one year from the date the

defamatory statement was first published.² Given that the expiry of this primary statutory window for the claims in question is July 2026, the formal issuance of a High Court Plenary Summons must be executed by the retained solicitor with absolute urgency.¹

While the courts possess a discretionary power to extend this limitation period to a maximum of two years, the jurisprudential threshold for securing such an extension is formidable.² A judge will only grant an extension if entirely satisfied that "the interests of justice require the giving of the direction" and that the prejudice suffered by the plaintiff if the extension is refused significantly outweighs the prejudice to the defendant if the extension is granted.² The Irish courts construe the date of the accrual of the cause of action strictly, and relying on a discretionary judicial extension introduces an unacceptable degree of procedural risk that could render the entire claim statute-barred.²⁶ Therefore, the drafting of the Statement of Claim and the filing of the Plenary Summons must be prioritized above all other civil actions.

3.2 Leveraging the Defamation (Amendment) Act 2026

The legal strategy must be meticulously optimized to leverage the sweeping reforms introduced by the Defamation (Amendment) Act 2026, which commenced operation in March 2026.¹ This legislation fundamentally recalibrates the prosecution of defamation in Ireland, introducing several critical advantages and strategic requirements for the plaintiff:

The most monumental shift is the formal abolition of juries in all High Court defamation actions under Section 4 of the Act.¹ Historically, the unpredictability of jury awards and the protracted nature of jury trials created immense financial risk and delay. Cases will now be heard by a presiding High Court judge sitting alone, ensuring faster, highly analytical judgments based purely on the evidentiary matrix and established judicial guidelines for the quantification of damages.¹ This drastically reduces the psychological attrition of the trial process for the whistleblower.

Furthermore, the 2026 Act introduces robust statutory safeguards against Strategic Lawsuits Against Public Participation (SLAPPs), encompassing mechanisms for the early dismissal of abusive proceedings, security for costs, and enhanced costs orders.¹¹ Because the father's defamatory campaign is explicitly retaliatory against a protected, mandatory Tusla disclosure made under the Children First Act 2015, these anti-SLAPP frameworks can be utilized defensively if the father attempts to initiate vexatious counter-litigation to drain the whistleblower's resources.¹

Crucially, Section 6 of the 2026 Act introduced a stringent "serious harm" threshold for bodies corporate, requiring profit-making entities to prove that a defamatory statement caused or is likely to cause serious financial loss.¹ However, the legislation provides a vital exemption: registered charities are legally exempt from this stringent financial loss requirement.¹ Because the defamatory claims directly targeted an educational charity operated by the whistleblower, the optimal procedural strategy requires joining both the whistleblower and the charity as co-plaintiffs in a single High Court writ.¹ The whistleblower sues for the devastating injury to their personal and professional reputation, the incitement of violence, and severe emotional distress, while the charity sues for the damage inflicted upon its organizational integrity and

public standing, entirely bypassing the corporate financial loss test.¹

3.3 Strategic Insulation of Third-Party Assets and Spousal Immunity

A paramount, ethically driven objective of the whistleblower is to execute maximum legal accountability against the abusive father without inflicting collateral financial destruction upon the stepmother and adult sisters.¹ The stepmother is documented as a victim of mental abuse who relies entirely on the father's income to sustain the family mortgage and essential living expenses.¹

Under historical legal doctrines, spouses shared legal liabilities. However, modern Irish civil law, specifically the Married Women's Status Act 1957, establishes the strict principle of separate legal personality regarding debts and torts.¹ Under Section 11 of the 1957 Act, a spouse is not legally liable for any tort committed by their husband, nor can they be sued or attached to proceedings in respect of that tort.¹ If the High Court awards massive financial damages against the father for his defamatory campaign, the resulting judgment debt belongs exclusively to him.¹

The Irish courts possess absolutely no jurisdiction to attach the earnings, salary, or independent income of the stepmother to satisfy a judgment debt awarded against the father.¹

Furthermore, goods and assets solely owned by the stepmother are entirely exempt from seizure by the Sheriff.¹ The sole vulnerability in civil debt enforcement lies in jointly owned property. A creditor can register a "Judgment Mortgage" against the father's specific share of the family home.¹ While this places a legal lien on the property and complicates future sales or remortgaging, it does not legally divest the stepmother of her share, nor does it force an immediate eviction.¹ However, to completely insulate the stepmother's living situation and avoid the complexities of civil judgment mortgages entirely, the optimal overarching strategy is to aggressively prioritize the criminal prosecution of the father, as criminal fines are payable to the State and custodial sentences do not generate civil liens against the family home.¹

4. Prosecuting Coercive Control: Evidentiary Deconstruction and Synthesis

Coercive control was established as a specific criminal offense in the Republic of Ireland under Section 39 of the Domestic Violence Act 2018, marking a paradigm shift in how the justice system comprehends non-physical domestic abuse.¹ The legislation defines this offense as a person knowingly and persistently engaging in behavior that is controlling or coercive, which has a serious effect on a relevant person, causing them to fear that violence will be used against them, or causing serious alarm and distress that has a substantial adverse impact on their day-to-day activities.¹

Prosecuting this offense requires demonstrating a persistent pattern of behavior rather than isolated incidents.¹ Utilizing the documentary evidence provided, a highly actionable evidentiary framework can be compiled for submission to An Garda Síochána.

4.1 Public Trauma Grooming and the Invalidation of Reality

A highly sophisticated and empirically documented tactic of coercive control involves the deliberate invalidation of a victim's reality, clinically termed "psychosis gaslighting".¹ By systematically labeling accurate memories of abuse as delusions, the perpetrator discredits the victim to external agencies while destabilizing the psychological equilibrium of the family unit.¹ This psychological manipulation intrinsically extends to the grooming and alienation of the younger siblings.

A profoundly actionable instance of this occurred in a public setting at a retail store.¹ Following an emotional interaction between the siblings, the perpetrator intervened, approaching the fourteen-year-old sister from behind, pressing his body against her, covering her ears, forcibly rotating her head, and repeatedly whispering, "that is the bad man, Cian is the bad man and the bad man is going away".¹ From a clinical traumatology perspective, this event represents an extreme exertion of physical and psychological dominance, serving as a form of coercive indoctrination designed to instill terror, distort the adolescent's perception of reality, and implant a traumatic associative memory.¹ This public trauma grooming fits unequivocally within the parameters of the persistent controlling behavior required to prosecute coercive control under Section 39.¹

4.2 Exploitation of Medical Data and Digital Surveillance

Modern coercive control increasingly relies on technology-facilitated abuse to exert omnipresent dominance.¹ In this matrix, the perpetrator weaponized a continuous glucose monitor—specifically a carbohydrate and ketone tracker application—used for the youngest sister's Type 1 diabetes.¹ While such medical trackers are essential for disability management, the perpetrator explicitly utilized the application to exert total surveillance over the minor's biological data at all times, coupling this digital omnipresence with derogatory, emotionally abusive commentary regarding her physical mobility.¹ The misuse of life-sustaining medical technology to regulate, surveil, and inflict humiliation upon a dependent constitutes a severe, emerging form of digital coercive control that transforms a healthcare necessity into a mechanism of subjugation.¹

4.3 Forced Compliance and the Hijacking of Safe Boundaries

Digital evidence, specifically an October 24, 2023, video recording, captures the micro-dynamics of the father's coercive environment.¹ The footage documents the youngest sister authentically and joyfully receiving a MacBook gift from the whistleblower.¹ The father hijacked the filmed environment, issuing sharp disciplinary prompts ("Don't be saying thank you to me" and "No") that placed the adolescent in an immediate psychological double-bind.¹ Aware she was being recorded and reprimanded, the sister was forced to comply with his staging, offering a forced, performative expression of gratitude.¹ This interaction demonstrates the father overwriting a safe boundary, inserting himself as the mandatory mediator of the sibling relationship, and utilizing surveillance to enforce public compliance.¹

4.4 Digital Impersonation and the Monopolization of Communication

Perpetrators routinely seek to isolate their targets by fracturing familial alliances and controlling the flow of information. An email dated April 19, 2023, dispatched from the father's personal email address, was explicitly signed in the stepmother's name.¹ This communication deployed authoritarian language to enforce geographical isolation, demanding the whistleblower "never visit" the sister's school or the family residence.¹ The email actively rejected familial titles and attempted to establish a false narrative attributing the family's anxiety to the whistleblower.¹ Regardless of whether this email was extracted from the stepmother under extreme duress or digitally fabricated by the father impersonating her, it demonstrates a calculated effort to monopolize communication channels, hide behind third-party identities, and avoid direct accountability for enforced isolation.¹

Coercive Modality	Mechanism of Action	Evidentiary Basis	Statutory Alignment
Public Trauma Grooming	Physical restriction and auditory manipulation to implant false narratives of danger and alienate siblings.	The "Sports Direct" Incident (Physical head rotation, auditory repetition of "bad man").	DVA 2018, s. 39 (Controlling behavior causing serious alarm).
Medical Surveillance	Weaponizing life-sustaining technology to enforce biological tracking and inflict humiliation.	Misuse of the Type 1 Diabetes Carbohydrate/Ketone Tracker application.	DVA 2018, s. 39 (Substantial adverse impact on day-to-day activities).
Digital Impersonation	Monopolizing communication channels to isolate the victim and hide behind third-party identities.	April 19, 2023 Email from father's account signed by the stepmother enforcing geographical isolation.	DVA 2018, s. 39; Malicious Communications offenses.
Forced Compliance	Utilizing surveillance to enforce disciplinary prompts and overwrite safe sibling boundaries.	October 24, 2023 MacBook video recording demonstrating performative compliance under duress.	DVA 2018, s. 39 (Coercive behavior).

5. Prosecuting Statutory Perjury: Dismantling the Fabrication of Fear

When abusers fail to silence whistleblowers through direct intimidation, they frequently manipulate the family courts, projecting their abusive behavior onto the victim to secure

protective orders that invert the victim-offender dynamic.¹ The father utilized Section 10 of the Domestic Violence Act 2018 to file sworn Informations seeking protective orders in 2023 and 2025, deploying fabricated narratives of fear and erratic behavior.¹

5.1 The Criminal Justice (Perjury and Related Offences) Act 2021

Historically, perjury in Ireland was a common law offense that was notoriously difficult to prosecute, particularly regarding statements made in private family law settings.¹ This landscape was radically transformed by the Criminal Justice (Perjury and Related Offences) Act 2021.¹ Under Section 2 of the 2021 Act, a person commits a statutory offense if they make a statement material to a judicial proceeding, sworn on an affidavit or in a statement of truth, that is false and known by them to be false.¹ The penalties act as a profound deterrent: summary convictions carry a 12-month sentence, while conviction on indictment carries a maximum penalty of 10 years imprisonment and/or fines up to €100,000.¹

The father's June 2025 application, granted *in absentia*, relied on sworn claims of "constant intimidatory messaging," asserting that the family lived in terror of the respondent.¹ This perjury relies entirely on the assertion that his daughters feared the respondent's unpredictable behavior.¹

5.2 Empirical Rebuttal and Piercing the In Camera Veil

This sworn narrative is empirically dismantled by contemporaneous communication logs (2017–2022) demonstrating profound reliance on the respondent for academic survival, emotional empathy, and financial support, fundamentally contradicting the allegation of fear.¹ Furthermore, the October 2023 MacBook video capturing the youngest sister's authentic joy serves as undeniable empirical evidence contradicting the father's subsequent sworn affidavits.¹

To successfully prosecute perjury committed in a domestic violence hearing, the strict family law privacy rules must be legally navigated. Because applications under the Domestic Violence Act 2018 are heard *in camera* (in private), the transcripts and affidavits are not publicly accessible.¹ However, landmark Supreme Court and High Court jurisprudence has definitively established that the *in camera* rule does not act as a shield for criminality.¹ The victim must make a formal criminal complaint to An Garda Síochána, who are fully empowered to apply to the District Court to lift the *in camera* rule.¹ This allows the State to legally seize the original sworn affidavits and obtain the official transcript or Digital Audio Recording (DAR) of the hearings, transmitting the comprehensive file to the DPP for indictment under the 2021 Act.¹

6. Procedural Architecture for Appealing the February 2026 In Absentia Safety Order

The Safety Order granted *in absentia* (in the absence of the respondent) in February 2026 represents a critical vulnerability in the father's legal strategy.¹ Applications made *ex parte* or heard in the absence of the respondent are strictly bound by the foundational legal principle of

uberrimae fides (utmost good faith).¹ The applicant has a positive legal duty to disclose all material facts to the presiding judge, including facts adverse to their own case. By failing to inform the judge of the protected Tusla disclosures and the retaliatory context of the application, the father breached this duty of full disclosure.¹

Furthermore, if the respondent was never properly served with the original Domestic Violence Summons (Form 59.1), the District Court's jurisdiction to grant the final order is fundamentally flawed.¹ Because the order was granted in February 2026 and the current timeframe is mid-2026, standard limitation periods have expired, requiring specific procedural remedies under the District and Circuit Court Rules.

6.1 Application to Set Aside the Judgment in Default

Under the District Court Rules, a respondent can apply directly to the District Court to have a judgment granted in default varied or set aside due to a lack of proper service.¹

- **Procedural Execution:** The respondent must submit a completed **Notice of Motion (Form 44.02)** to the relevant court office where the judgment was processed.³⁶
- **The Grounding Affidavit:** This Notice must be accompanied by a sworn Grounding Affidavit setting out clearly and briefly the reasons for non-appearance (specifically, the deliberate failure of service or the intentional misdirection of the summons by the applicant).³⁶ The Affidavit must state the nature of the fraud, misrepresentation, or mistake upon which the application relies, and outline the robust defense against the claims made in the original summons.³⁶

6.2 Application for an Extension of Time to Appeal (De Novo Hearing)

The most comprehensive mechanism to neutralize the fraudulent order is an appeal to the Circuit Court. An appeal to the Circuit Court operates as a *de novo* (completely fresh) hearing.¹ This effectively erases the procedural defects of the District Court and forces the applicant to present their evidence entirely anew, allowing the respondent's counsel to introduce the evidence of perjury, expose the lack of proper service, and aggressively cross-examine the claims.¹

- **Navigating the Time Limit:** The standard statutory window to lodge a Notice of Appeal (Form 101.1) is strictly 14 days from the date the order was made.¹ Given the February 2026 date, the respondent is out of time.
- **The Notice of Motion:** The respondent must therefore urgently apply to the Circuit Court for an **Extension of Time to Appeal**.³⁸ This requires submitting a Notice of Motion supported by a Grounding Affidavit.³⁹
- **Evidentiary Burden for Extension:** The court will only extend the time on proper grounds. The applicant must demonstrate arguable grounds of appeal (the existence of perjury and retaliatory abuse), a genuine intention to appeal, and a highly valid reason for the delay (e.g., the lack of notification due to no service, and systemic failures regarding the denial of requested disability accommodations by court staff).³⁷ If the extension order is granted, the original Notice of Appeal is lodged, triggering the *de novo* hearing.³⁹

6.3 Application to Discharge the Order

Under Section 21 of the Domestic Violence Act 2018, the respondent can also apply directly to the District Court for the formal discharge of the Safety Order.¹ This procedure requires the issue and service of a summons utilizing **Form 59.12**, scheduling a hearing where evidence of the order's fraudulent basis, the lack of ongoing risk, and the retaliatory nature of the application can be presented to the judge.⁴²

Procedural Pathway	Governing Framework	Required Documentation	Strategic Outcome
Set Aside in Default	District Court Rules	Notice of Motion (Form 44.02) & Grounding Affidavit	Nullifies the order based on lack of service or procedural fraud.
Circuit Court Appeal (De Novo)	District Court Rules / DVA 2018	Notice of Motion (Extension of Time), Notice of Appeal (Form 101.1)	A completely fresh hearing erasing lower court defects, permitting cross-examination of perjury.
Discharge Application	DVA 2018, s. 21	Summons (Form 59.12)	Formally discharges the order upon demonstrating no risk or fraudulent basis.

7. Legal Strategies to Handle Vulnerable Witnesses and Prevent Perjury

A paramount complexity in this legal matrix is the presence of highly vulnerable family members—the stepmother and the sisters—who are actively living under the perpetrator's severe coercive control.¹ If these individuals are called to provide evidence to the Gardai or testify in court (either in the family law appeal or the criminal prosecution), there is an extreme risk of secondary traumatization. More critically, the coercive control dynamic dictates that the abuser will utilize profound psychological manipulation to force them to commit perjury to protect him and validate his fabricated narratives. Engaging standard adversarial legal processes without intercepting this dynamic will result in catastrophic harm to the witnesses and the legal case. Irish law provides highly specific frameworks to protect such individuals and insulate them from the abuser's influence during legal proceedings.

7.1 Special Measures Under the Criminal Evidence and Victims of Crime Acts

If the stepmother or sisters interact with the criminal justice system regarding the coercive

control or perjury investigations, they are legally classified as vulnerable witnesses. The traditional, oral design of adversarial cross-examination is fundamentally inappropriate for victims of psychological subjugation, as it often replicates the dynamics of the abuse, triggering compliance with the abuser's implanted narrative.⁴⁵

The treatment of vulnerable witnesses in Ireland was revolutionized by the **Criminal Evidence Act 1992** and the **Criminal Justice (Victims of Crime) Act 2017**.⁶ Under Section 19 of the 2017 Act, the Gardaí and the court possess a statutory mandate to assess victims and witnesses to determine specific protection needs, explicitly recognizing the severe vulnerability of victims of gender-based violence, domestic abuse, and violence in close relationships.⁶ To prevent the witnesses from being traumatized into committing perjury, the retained solicitor must proactively petition the DPP and the presiding judge to implement "special measures" to maximize the quality and truthfulness of their evidence ⁴⁹:

1. **Appointment of Registered Intermediaries:** Under the expanded provisions of the 1992 and 2017 Acts, the court can appoint a registered intermediary (a specialized communication expert) to facilitate communication between legal professionals and the vulnerable witness.⁶ The intermediary ensures that questions are appropriately phrased, preventing aggressive, confusing cross-examination tactics designed by defense counsel to elicit false, compliant testimony.⁷ This ensures the witness fully comprehends the gravity of the oath and is protected from manipulative linguistic traps.
2. **Screening and Remote Video Links:** The court can direct that a physical screen be positioned in the courtroom to prevent the witness from seeing the abuser while giving evidence, severing the visual intimidation pathway.⁶ Alternatively, evidence can be provided remotely via a live television link from outside the courtroom, entirely removing the witness from the coercive physical presence of the perpetrator.⁴⁸

7.2 The Assisted Decision-Making (Capacity) Act 2015

The documentary evidence notes that the stepmother lacks the "mental bandwidth" or independence to pursue legal action due to the ongoing, debilitating mental abuse and fear.¹

The **Assisted Decision-Making (Capacity) Act 2015**, which abolished the archaic and paternalistic Ward of Court system, introduced a modernized, tiered framework for adults requiring decision-making support.¹

Crucially, the 2015 Act evaluates functional capacity based on a specific decision at a specific moment in time, and the legislature deliberately excluded a strict medical "diagnostic" requirement.¹

Therefore, a victim of severe coercive control whose agency and executive function have been systematically dismantled by trauma could theoretically be assessed as lacking the functional capacity to manage complex legal or financial affairs independently.¹

To protect her from the father's legal manipulation, she could voluntarily enter into a Decision-Making Assistance Agreement or a Co-Decision-Making Agreement with a trusted third party.¹ To facilitate this safely, the involvement of independent advocacy is vital.

Organizations such as the **National Advocacy Service for People with Disabilities (NAS)** (0818 07 3000) or **Sage Advocacy** provide free, independent, and confidential representative

advocacy.⁵² These advocates specialize in supporting individuals whose decision-making is compromised by trauma or cognitive issues, ensuring their authentic will and preferences are protected during meetings with solicitors and court hearings, thereby fortifying them against the abuser's coercive directives.⁵¹

7.3 Administrative Boundaries in Higher Education Institutions (HEIs)

A particularly insidious element of the abuse is the father's attempt to weaponize the fraudulent 2025 Safety Order to dictate the dynamics between the siblings within a shared Higher Education Institution (HEI), grooming the younger sister to view the university campus as a hostile environment.¹ A Safety Order strictly prohibits violence or watching/besetting a home; it does not constitute a Barring Order from a public institutional space, and the father's narrative to the contrary is a deliberate legal misrepresentation.¹

To protect the younger sister and neutralize this spatial gaslighting, the optimal institutional mechanism is the implementation of a **Mutual No-Contact Agreement (NCA)**.¹ Facilitated confidentially through the university's Dignity and Respect Support Services or the Student Conduct office, an NCA is an administrative, non-disciplinary agreement that establishes clear, respectful geographical boundaries (e.g., altering timetables, designated library zones) without assigning blame or validating the father's false allegations.¹ This provides the sister with immediate agency and safety, systematically dismantling the father's control over her campus experience without forcing her into an intimidating formal disciplinary process.¹

8. Enforcing Statutory Disability Rights and Bypassing Local Garda Stations

The whistleblower suffers from Complex Post-Traumatic Stress Disorder (CPTSD), a validated psychiatric disability resulting from severe historical abuse.¹ For individuals with CPTSD, the physical environment of a local Garda station (such as Mill Street in Galway) can serve as a severe psychological trigger, rendering the standard process of reporting a crime inaccessible and traumatizing.¹ The Irish State apparatus is legally mandated to accommodate this disability, providing mechanisms to bypass standard local policing routes.

8.1 Statutory Rights to Reasonable Accommodation

Under **Section 4 of the Equal Status Acts 2000-2015**, discrimination includes a refusal by a service provider (which encompasses all State entities, including An Garda Síochána and the Courts Service) to do all that is reasonable to accommodate a person with a disability in accessing their services.¹

Furthermore, **Section 26(2) of the Disability Act 2005** places a strict statutory obligation on public bodies to appoint dedicated "Access Officers".¹⁰ The role of the Access Officer is to proactively provide and coordinate assistance and guidance to persons with disabilities accessing the services of that specific public body.¹⁰ If an individual cannot physically attend a Garda station due to a psychiatric disability, the State is legally required to provide alternative,

accessible mechanisms for them to access justice and report criminality.

8.2 Bypassing Mill Street via the GNPSB and DPP

Because the crimes involved in this matrix—transnational coercive control, statutory perjury in family law, and systemic domestic abuse—are highly complex and sensitive, they fall squarely under the specialized operational remit of the **Garda National Protective Services Bureau (GNPSB)**.⁹ The GNPSB leads investigations in complex cases and provides expert guidance to divisional units regarding sexual crime, child protection, and domestic abuse.⁹

To bypass the trauma of a physical visit to the Mill Street station, the statutory framework and Garda policy allow for formal criminal complaints to be submitted in writing through legal representation.

- **Direct Submission via Solicitor:** The retained solicitor (e.g., KOD Lyons) can compile the comprehensive evidentiary dossier (sworn informations, medical tracker logs, video evidence, and communications) and submit a formal, detailed written complaint directly to the GNPSB.⁶⁸
- **National Contact Protocols:** The GNPSB can be engaged directly at their headquarters in Harcourt Square, Dublin, or via their dedicated national communications channel at gnpsb@garda.ie.⁹
- **The Office of the DPP:** The Director of Public Prosecutions also operates a clear, published feedback and complaints policy that explicitly accepts submissions through a nominated representative, such as a solicitor, ensuring the disabled victim is entirely insulated from the front-line bureaucratic friction of local policing.⁷⁰

By utilizing these specialized national bureaus and explicitly citing the necessity for reasonable accommodation under Section 26 of the Disability Act 2005, the victim ensures the complaint is handled by high-level specialists trained in trauma-informed practice, entirely bypassing the local station apparatus.

8.3 High Court Tort Claims for Administrative Malfeasance

The injustice perpetrated by the father was profoundly exacerbated by severe administrative malfeasance within the Galway Court Office.¹ The documentary record reveals a targeted pattern of hostility, discrimination, and statutory breaches by registry staff against a disabled litigant, including "cold switching" (applying intense psychological pressure during unrecorded phone calls while remaining evasive in writing), the deliberate violation of linguistic rights ("deadnaming" contrary to the Official Languages Acts), and the complete, silent disregard of explicit requests for disability accommodations (remote hearings via Pexip).¹ This administrative hostility directly forced the disabled litigant's exclusion from the February 2026 hearing, directly facilitating the granting of the *in absentia* Safety Order.¹

This conduct transcends poor customer service and enters the realm of actionable civil torts against the State. The respondent possesses robust grounds to initiate a High Court civil suit against the Courts Service for:

1. **Misfeasance in Public Office:** This specialized tort is committed when a public official acts unlawfully with targeted malice or subjective recklessness regarding the lawfulness

of their actions.⁷⁴ The alleged prior personal acquaintance of the staff member with the abuser, combined with the deliberate creation of procedural bottlenecks, provides a strong *prima facie* case of bad faith.¹

2. **Breach of Statutory Duty:** The deliberate failure to comply with the reasonable accommodation mandates of the Equal Status Acts and Section 26 of the Disability Act 2005, alongside the violation of reciprocal communication duties under Section 9 of the Official Languages Act 2003, establishes the absolute unlawfulness of the public servant's conduct.¹
3. **Negligent Infliction of Psychiatric Harm:** The intentional triggering of the respondent's CPTSD flashbacks via deadnaming and hostile communications constituted a foreseeable psychiatric injury requiring intensive clinical management.¹

Simultaneously, under **Section 38 of the Disability Act 2005**, the respondent must lodge a formal complaint to the Courts Service **Inquiry Officer**.⁶⁵ Unlike an Access Officer who facilitates services, the Inquiry Officer possesses statutory independence to formally investigate complaints regarding a public body's failure to comply with the Act.⁶⁷ This initiates an internal statutory investigation that will generate a highly discoverable written report, serving as vital foundational evidence for the subsequent High Court tort litigation against the State.⁶⁷

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